

CFES

*CANADIAN FEDERATION
OF ENGINEERING STUDENTS*



FCEG

*LA FÉDÉRATION CANADIENNE
ÉTUDIANTE EN GÉNIE*

Canadian Federation of Engineering Students

Constitution

English Edition

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Terms & Definitions

Term	Definition
CFES	Abbreviation for the Canadian Federation of Engineering Students
Articles	The original or restated articles of incorporation or articles of amendment, amalgamation, continuance, reorganization, arrangement or revival of CFES.
Resolution	A motion presented as a proposal and approved by majority vote, or the applicable voting threshold if otherwise specified
Special Resolution	A Resolution approved by a two-thirds (2/3) majority vote
Member, Member Society	A recognized engineering student society representing students at a Canadian post-secondary institution that has been admitted to membership in the CFES in accordance with this Constitution
National Executive Leadership Team	The President and the Vice-Presidents
CFES Team	The Directors and National Executive
Activity	The Leadership Team, Commissioners, and Activity Managers
Host Society	A conference, competition, or other event organized by the CFES for its Members
Activity Manager(s)	The Member Society responsible for an Activity of the CFES
General Meeting	The person chiefly responsible for the organization of an Activity on behalf of a Host Society
CELC	A meeting of the Members
CSE	The Canadian Engineering Leadership Conference
CEC	The Conference on Sustainability in Engineering.
CESS	The Canadian Engineering Competition
SDES	The Canadian Engineering Spring Summit, where the Annual General Meeting is held
CDE	The Summit on the Development of Engineering Societies
	The Conference on Diversity in Engineering

1 General

1.1 Name of the Corporation

1. The name of the Corporation shall be “The Canadian Federation of Engineering Students”.

1.2 Fiscal Year

1. The Fiscal Year of the CFES shall begin on May 1st and conclude on April 30th of the following year.

1.3 Logo

1. The Logo that appears below is employed to designate the Canadian Federation of Engineering Students.

2 Dispositions

2.1 Guiding Principles

1. As per the Articles, the CFES supports growth and communication within its members to ensure their moral, intellectual, cultural, academic, social and economic well-being.
2. The CFES represents and promotes Canadian undergraduate engineering students on a national and international level.
3. The CFES will not align itself with any political party.

2.2 Mission

1. The goal of the CFES is to solicit, represent, advocate for, and advance the interests of its Members at a national level as to ensure their moral, intellectual, cultural, academic, social and economic well-being, and to improve the quality and scope of Canadian engineering education.
2. The CFES shall pursue this mission by:
 - (a) Organizing and hosting conferences, meetings, assemblies, exhibitions and competitions in furtherance of the mission,
 - (b) Affiliating itself with any organization pursuing goals aligned with those of the CFES,
 - (c) Acquiring via purchase, renting or otherwise, possessing and operating the assets, movables and real estate necessary to accomplish the mission,

- (d) Providing its members services of all kinds related to the mission,
- (e) Creating, supporting, and participating in movements, opinion campaigns or other organizations advancing these goals,
- (f) Encouraging Members to create and share relevant information to all Members and other interested parties,
- (g) Promoting the interaction of Canadian engineering students with specific interest groups (societies, associations, government and other agencies) on national and international issues of social, economic, political, legal and human concern relevant to engineering,
- (h) Presenting information of relevance to appropriate government and other agencies,
- (i) Cooperating with all engineering associations recognized by the corporation in matters of common interest,
- (j) Promoting and safeguarding the public image of engineering students in Canada,
- (k) Facilitating and developing Activities and services.

2.3 Regions

1. The CFES shall be comprised of four (4) regions, each represented at the national level:
 - (a) Atlantic – Provinces of Prince Edward Island, of New Brunswick, of Nova Scotia, and of Newfoundland and Labrador;
 - (b) Quebec – Province of Quebec;
 - (c) Ontario – Province of Ontario; and
 - (d) West – Provinces of British Columbia, of Alberta, of Saskatchewan, of Manitoba, and The Territory of Yukon, Territory of Nunavut and Northwest Territories.

2.4 Official Languages

1. The CFES shall be a bilingual organization. English and French shall be its official languages.

3 Membership

1. A Member is a society that:
 - (a) represents undergraduate engineering students at a Canadian higher education institution has an engineering program accredited, or in the process of accreditation, by the Canadian Engineering Accreditation Board
 - (b) represents the students' concerns to their faculty and higher education institution administration

- (c) has been admitted to membership in the CFES in accordance with this Constitution.
- 2. Multiple societies may apply to co-represent the undergraduate engineering students at their institution where there is no single society fitting the description.
 - (a) The voting representative must be jointly confirmed by the President of each society at each General Meeting.

3.1 Application for Membership

1. To become a Member, an organization must submit an application, the content of which shall be at the discretion of the Board.
2. The Board shall then pass a Resolution to accept or reject the organization's admission, and this no later than the General Meeting following the organisation's submission of the application.
3. The following General Meeting shall ratify the organisation's membership by Resolution.

4 General Meetings

4.1 Annual General Meeting

1. The Annual General Meeting shall be held at CESS.
2. The business items transacted at the Annual General Meeting shall include:
 - (a) Receipt of the agenda,
 - (b) Receipt of the minutes of the previous General Meeting,
 - (c) Appointment of the auditor for the ensuing year,
 - (d) Presentation of the audited financial statements of the previous financial year, together with the auditor's report,
 - (e) Election of the Leadership Team,
 - (f) Presentation of any other information or reports relating to the CFES's activities and affairs as the Board may determine.

4.2 General Meetings

1. General Meetings shall be held at SDES, CELC, and CESS.

4.3 Special Meetings of the Members

1. A Special Meeting of the Members may be called by a Resolution of the Board, or by a petition signed by 5% of the Members duly submitted to the Chair.

2. The Chair shall call the Special Meeting within twenty-one (21) days of the receipt of the petition or the Resolution. If the Chair does not call the Special Meeting within twenty-one (21) days of receiving the petition, any Member who signed the petition may call the meeting.

5 National Executive

5.1 Composition

1. The National Executive shall consist of the:
 - (a) President
 - (b) Vice President Academic
 - (c) Vice President Communications
 - (d) Vice President External
 - (e) Vice President Finance
 - (f) Vice President Services

5.2 Election

1. The National Executive shall be elected at the Annual General Meeting.

5.3 Eligibility

1. The candidate must be a member of a Member Society at the time of their candidature.

5.4 Term of Office

1. The term of office for the National Executive shall commence on the date of their appointment and expire at the close of the next year's Annual General Meeting.
2. Concluding their term in office, the Vice-President Finance will transition to the role of Outgoing Vice-President Finance, with a term concluding on August 31st.

6 Regional Ambassadors

6.1 Appointment

1. Each region shall, before CESS each year, communicate to the Chair their nominee for the position of Regional Ambassador to their region.
2. The appointment of the Regional Ambassadors shall be approved by a Resolution of a General Meeting.

6.2 Eligibility

1. The candidate must be a member of a Member Society of that region at the time of their ratification.

6.3 Term

1. The term of office for the Regional Ambassadors shall commence on the date of their appointment and expire at the close of the next year's Annual General Meeting.

7 National Councillors

7.1 Purpose

1. The National Councillors shall provide the Board with continuity and institutional knowledge, and shall advise on any matter brought before them.
2. The National Councillors shall be responsible for assisting the organizational transition process.

7.2 Election

1. The two (2) National Councillors shall be elected at the Annual General Meeting.
2. There is no specific eligibility condition for the candidate for a National Councillor position.

7.3 Term

1. The term of office for the National Councillors shall commence on the date of their appointment and expire at the close of the next year's Annual General Meeting.

8 Chair

8.1 Purpose

1. The Chair shall be responsible for providing leadership to the Board and ensuring the effective governance of the CFES.
2. The Chair shall facilitate the orderly conduct of meetings of the Board and the Members, support effective decision-making, and promote continuity and accountability within the CFES.
3. The Chair shall serve as the presiding officer of the Board and the General Meetings.

8.2 Term

1. The term of office for the Chair shall commence on the date of their appointment and expire at the close of the next year's Annual General Meeting.

8.3 Appointment

1. The Board shall appoint a Chair from among members of Member Societies. The appointment of the Chair shall constitute the appointment of an additional Director.
2. The appointment of the Chair shall be submitted to the Members for ratification at the Annual General Meeting.

9 Board of Directors

9.1 Purpose

1. The Board shall exercise fiduciary and governance oversight of the CFES, and shall manage its property and business in furtherance of its mission.

9.2 Composition

1. There shall be eight (8) Directors
 - (a) The President;
 - (b) The Chair;
 - (c) The four (4) Regional Ambassadors;
 - (d) The two (2) National Councillors;

9.3 Powers of Administration

1. The Board may administer the affairs of the CFES in all things and make or cause to be made for the CFES, in its name, any kind of contract which the CFES may lawfully enter into and, save as hereinafter provided, generally, may exercise all such other powers and do all such other acts and matters of the CFES as by its by-laws or otherwise authorized to exercise and do.

9.4 Voting

1. In the case of an equality of votes, the motion shall be defeated.

10 Leadership Team

10.1 Remuneration

1. The Leadership Team shall serve without remuneration and no member of the Leadership Team shall directly or indirectly receive any profit from holding the position, provided that reasonable expenses incurred in the exercise of the member's duties are reimbursed.

10.2 Accountability

1. The Leadership Team shall remain accountable to the Members.

10.3 Dismissal

1. A member of the Leadership Team may be dismissed by a Resolution of the General Meeting
2. A member of the National Executive may also be dismissed by a Special Resolution of the Board.
 - (a) The Board does not have the authority to dismiss the President.

10.4 Vacancy

1. Provided a vacancy occurs for any Leadership Team position, this vacancy shall be communicated to the Members within five (5) days.
2. A vacancy which occurs due to the removal of a Director by Resolution of a General Meeting may be filled at that General Meeting by Resolution. If the Director vacancy is not filled at that General Meeting, then the Board may fill the vacant Director position by appointment.
3. The Board may, by appointment, fill the vacancy of any Leadership Team position (with the exception of a vacancy to a Director position resulting from the removal of a Director at a General Meeting, which must be filled in the manner described in Section 10.4.2 above).
 - (a) Vacancies in the position of Regional Ambassador may be filled in consultation with the affected region.
 - (b) The Board may appoint one or more additional Directors who shall hold office for a term expiring no later than the close of the next Annual General Meeting, but the total number of Directors so appointed may not exceed one third of the number of Directors elected at the previous Annual General Meeting of the members.
4. In the event of a vacancy of a Vice Presidential position, the President shall assume the portfolio's responsibilities.

5. In the event of a vacancy of a Director's position, the Board shall assume the portfolio's responsibilities.

10.5 Concurrent Positions

1. No person shall hold more than one position on the Leadership Team at the same time.

11 Activities and Services

11.1 Overview

1. The Activities of the CFES shall include CELC, CSE, CEC, SDES, and CDE.

11.2 Organization of Activities and Services

11.2.1 Host Societies

1. Host Societies shall be appointed by a Resolution of the General Meeting.

11.2.2 Activity Managers

1. Activity Managers shall be appointed by the Host Society.
2. Their term of office shall span from the time of appointment until the resolution of any accounts receivable or payable at the conclusion of the activity in question.

12 Financial and Legal Dispositions

12.1 External Audit

1. The CFES must conduct an external audit annually.

12.2 Audit by Membership

1. At any General Meeting, a Member may request to view the books.

12.3 Reimbursements

1. The Board may authorize the reimbursement of the CFES Team of all costs, charges and expenses which they sustain or incur in or about or in relation to the affairs thereof, except such costs, charges or expenses as are occasioned by their own wilful neglect or default.

2. The Leadership Team will be reimbursed of all costs, charges and expenses they sustain or incur in or about any action, suit or proceedings which is brought, commenced or prosecuted against them, or in respect of any act, deed, matter or thing whatsoever, made, done or permitted by them, in or about the execution of the duties of this office or in respect of any such liability.

12.4 Trust Company

1. The Board shall have power to authorize expenditures on behalf of the CFES from time to time and may delegate by resolution to a member of the Leadership Team the right to employ and pay salaries to employees.
2. The Board shall have the power to enter into a trust arrangement with a trust company for the purpose of creating a trust fund in which the capital and interest may be made available for the benefit of promoting the interest of the CFES in accordance with such terms as the Board or members may prescribe.

12.5 Donations

1. The Board shall take such steps as they may deem requisite to enable the CFES to acquire, accept, solicit or receive legacies, gifts, grants, settlements, bequests, endowments and donations of any kind whatsoever for the purpose of furthering the objectives of the CFES.

12.6 Power of Attorney

1. The Board may give the power of attorney to any registered dealer in securities for the purposes of the transferring of and dealing with any stocks, bonds, and other securities of the CFES.

13 Dissolution

1. As per the Articles, the CFES shall be dissolved upon a Special Resolution of a General Meeting

14 Amendments

1. Subject to the Articles, the Board may, by Resolution, make, amend or repeal any provisions of this Constitution that regulate the activities or affairs of the CFES, except in respect of matters referred to in subsection 197(1) of the Act.
2. Any such amendment or repeal shall be effective from the date of the Board Resolution until the next General Meeting where it may be confirmed, rejected or amended by the Members by Resolution.

- (a) If the amendment or repeal is confirmed or confirmed as amended by the Members, it remains effective in the form in which it was confirmed.
- (b) The amendment or repeal ceases to have effect if it is not submitted to the Members at the next General Meeting or if it is rejected by the Members at the General Meeting.
- (c) If an amendment or a repeal ceases to have effect, a subsequent Board resolution that has substantially the same purpose or effect is not effective until it is confirmed, or confirmed as amended, by the Members at a General Meeting.
- (d) This does not apply to any amendment that requires a Special Resolution of the Members under subsection 197(1) (fundamental change) of the Act because such amendments or repeals are only effective when confirmed by the Members.

15 Annulment

1. The present Constitution repeals and annuls all previous Constitutions to date.

16 Invalidation

1. The invalidity or unenforceability of any provision of this Constitution shall not affect the validity or enforceability of the remaining provisions of this Constitution. If any of the provisions contained in the Constitution are inconsistent with those contained in the Articles or the Act, the provisions contained in the Articles or the Act, as the case may be, shall prevail.
2. Titles inserted in this Constitution and in all other documents of the CFES hereafter passed are included only to facilitate reading and should not affect interpretation.
3. In this Constitution and in all other documents of the CFES hereafter passed, unless the context otherwise requires, words importing the singular number shall include the plural number, and vice versa, and references to persons shall include firms and corporations.
4. In the case of a discrepancy between the English and French versions of this constitution, the English version takes precedence.

17 Superseding

1. In the event of a conflict between this Constitution and the following documents, the following documents shall prevail in the order in which they are listed:
 - (a) The Canada Not-For-Profit Corporations Act
 - (b) The Articles